

Counterfactual Order Granting Stay of Mandate

Filed: July 10, 2026 Docket No. SYN-CA4-26-CV-4102-CF-NEVER-OCCURRED

United States Court of Appeals for the Fourth Circuit

Asterglen Freight Software, Inc., Appellant, v. Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC, Appellees.

The Court grants Asterglen Freight Software, Inc.'s June 26 motion to stay mandate while it prepares a petition for a writ of certiorari. The contemplated petition will ask whether dismissal was required when the district court granted a Rule 54(b) motion and entered a separate judgment but omitted an express determination that there was no just reason for delay, and whether a corrective remand should have been used before dismissal.

For purposes of interim relief, Asterglen has shown that the proposed petition presents a substantial procedural question and that good cause supports a bounded stay. The question concerns administration of partial judgments in federal litigation and can be considered without resolving the parties' contract dispute. Issuance now would return overlapping claims to the district court while review is sought concerning whether the appeal should have remained pending. A temporary hold preserves the present allocation of authority and does not grant Asterglen relief on Count I.

The mandate is STAYED as of July 10, 2026. The June 8 opinion and judgment remain unchanged. This order neither reinstates the appeal nor limits any position the appellees may present in response to a certiorari petition.

Duration, continuation, and release conditions

The stay remains effective for ninety days from entry unless the Court dissolves it earlier or extends it for good cause. If Asterglen files a petition for certiorari within the allowed period, the stay will continue as Federal Rule of Appellate Procedure 41(d) provides through the Supreme Court's final disposition. Asterglen must notify the clerk promptly of filing, denial, dismissal, abandonment, or any other event affecting the asserted basis for withholding mandate.

No mandate may issue while this order remains effective. The passing of the June 29 ordinary date does not override the stay. This grant is not an order denying a timely stay motion and therefore does not start the seven-day post-denial period described in Rule 41(b). That provision's denial trigger cannot be used to schedule issuance after an order granting the requested relief.

If the stay ends without a Supreme Court disposition that independently directs issuance, the clerk shall await an order or docket direction releasing mandate. Any release may state an immediate date when permitted by the governing rules and the circumstances then presented. Until such action occurs, the district court shall be notified that mandate remains withheld. The clerk shall serve this order on all counsel and monitor the notice obligations and duration stated above.

ENTERED BY ORDER OF THE COURT